

Safeguarding Policy

1. Purpose

Swaniti Initiative values and maintains an organisational culture that is respectful, ethical and fair. It commits to treating everyone equally, irrespective of sex, age, race, national or ethnic origin, colour, religion, sexual orientation, gender identity or expression, or disability. It has zero tolerance towards any form of harm and will take all reasonable steps to safeguard any person linked to the delivery of its work, particularly children, at risk adults and beneficiaries, from any harm that may be caused due to the conduct of staff or personnel associated with Swaniti Initiative and the design and implementation of its programmes and activities.

Swaniti Initiative commits to take all reasonable steps to prevent harm, particularly sexual exploitation, abuse and harassment from occurring; to protect people, especially vulnerable adults and children, from that harm; and to respond appropriately when harm does occur.

Swaniti Initiative's safeguarding policy pays specific attention to preventing and responding to harm from any potential, actual or attempted abuse of power, trust, or vulnerability, especially for sexual purposes. Swaniti Initiative is committed to creating a safeguarding environment where potential risks are identified, considered, and minimized with clear, accountable and sensitive processes and procedures in place for redress. It will ensure that these means of reporting safeguarding concerns are safe, appropriate, accessible and made available for all.

This Safeguarding Policy lays out the commitments made by Swaniti Initiative, and informs staff, non-staff personnel, consultants, contractors, and partner organisations and institutions of their responsibilities, in relation to safeguarding by ensuring that its activities are delivered in a way which keeps all persons covered under this policy safe.

This policy does not cover:

- Sexual harassment in the workplace – this is dealt with under [NGO]'s Anti Bullying and Harassment Policy
- Safeguarding concerns in the wider community not perpetrated by [NGO] or associated personnel

Those systems must be survivor-centered and also protect those accused until proven guilty. Safeguarding puts beneficiaries and affected persons at the center of all we do.

2. Scope

Swaniti Initiative believes that everyone it comes into contact with, regardless of age, gender identity, disability, sexual orientation or ethnic origin has the right to be protected from all forms of harm, abuse, neglect and exploitation.

This Policy applies to:

- Employees
- Interns, volunteers, mentors, Chairs, or others associated through an established arrangement
- Individual consultants and contractors
- Partner organisations and institutions that deliver activities and services on behalf of or in partnership with Swaniti Initiative.

This Policy does not cover safeguarding concerns in the wider community not perpetrated by Swaniti Initiative staff or associated non-staff personnel, consultants, contractors and partner organisations and institutions.

3. Commitments

Swaniti Initiative commits to addressing safeguarding throughout its work, through the three pillars of prevention, reporting and response. Swaniti Initiative will:

- Ensure all staff, non-staff personnel, contractors, consultants, and partner organisations and institutions have access to, are familiar with, and know their responsibilities within this Policy
- Implement appropriate safeguarding procedures when recruiting, managing and deploying staff, non-staff personnel, contractors and consultants
- Design and undertake all its programmes and activities in a manner that protects stakeholders/program participants from any risk of harm that may arise from their coming into contact with Swaniti Initiative. This also includes the manner in which information about individuals/participants in our programmes is gathered and communicated
- Planning activities and events will include an assessment of, and risk to, the safety of all concerned from abuse
- Ensure staff receive training on safeguarding at a level commensurate with their role in the organization
- Provide all covered under this policy with the appropriate level of training and/or learning opportunities to help recognise, and respond to signs of sexual exploitation, abuse, harassment and other forms of harm
- It will also take steps to ensure that all staff understand their roles and responsibilities with respect to safeguarding individuals and their role in safeguarding the persons they come into contact with through the course of their work
- Follow up on reports of safeguarding concerns promptly and according to due process.

All covered under this policy are expected to:

- Promote the implementation of this Policy and contribute to creating and maintaining an environment that prevents sexual exploitation, abuse/harassment, and other safeguarding violations
- Report any concerns or suspicions to Swaniti Initiative regarding any suspected or alleged violations of this Policy.
- Partner organisations and institutions will be expected to ensure that their staff adhere to this Policy (or, by prior agreement, their own substantially similar safeguarding policy) when delivering activities and services on behalf of Swaniti Initiative
- Take all reasonable steps to safeguard the persons they come into contact with through the course of their work for Swaniti Initiative and keep Swaniti Initiative informed of any decisions or actions taken with respect to the enforcement of this Policy

4. Reporting

Anyone having a complaint or concern relating to safeguarding including reporting incidents of actual or suspected sexual exploitation, abuse or harassment should report it immediately to their Safeguarding Focal

Point. If the complainant does not feel comfortable reporting to their Safeguarding Focal Point, if they feel that the report will not be taken seriously, or if that person is implicated in the concern; they may report to the head of the organisation.

Please note:

- Anyone reporting concerns or complaints under this policy will be protected.
- Confidentiality will be maintained at all stages of the process when dealing with safeguarding concerns.

Note:

Employees and associated personnel must not:

- Engage in sexual activity with anyone under the age of 18 years
- Sexually abuse or exploit children
- Subject a child to physical, emotional or psychological abuse, or neglect
- Engage in any commercially exploitative activities with children including child labour or trafficking
- Sexually abuse or exploit at risk adults
- Subject an at risk adult to physical, emotional or psychological abuse, or neglect
- Exchange money, employment, goods or services for sexual activity. This includes any exchange of assistance that is due to beneficiaries
- Engage in any sexual relationships with beneficiaries, since they are based on inherently unequal power dynamics

Swaniti Initiative has zero tolerance to any form of violation of this policy

5. Actions

A finding of non-compliance with this Policy by staff, non-staff personnel, contractors and consultants, or partner organisations and institutions may result in disciplinary action up to and including termination of employment in the case of a Swaniti Initiative staff member, and termination of the engagement or contractual arrangements or other appropriate action in the case of non-staff, contractors, consultants, or partner organisations and institutions.

The making of false, malicious, bad faith or baseless allegations under this Policy may result in disciplinary action up to and including termination of employment in the case of a Swaniti Initiative staff member, and termination of the engagement or contractual arrangements or other appropriate action in the case of non-staff personnel, contractors, consultants or partner organisations and institutions.

6. Policy Review

This Policy will be reviewed annually. All updates to the Policy will be circulated to staff and made available on the Swaniti Initiative website and/or employee management system.

Effective: December 1st, 2023

7. Declaration by employee/consultant/partner:

I have read and understood Swaniti Initiative's Safeguarding Policy. I commit to the following in both my personal and professional capacity:

- Uphold the integrity and reputation of Swaniti Initiative by ensuring that my professional and personal conduct is consistent with its values and standards
- Treat everyone fairly with respect and dignity
- Be observant and comply with any local security guidelines and be pro-active in informing management of any necessary changes to such guidelines
- Be observant of all local laws and be sensitive to local customs (including international travel)
- Seek to ensure that my conduct does not bring Swaniti Initiative into disrepute and does not impact on or undermine my ability to undertake the role for which I am employed or engaged
- Not engage in abusive or exploitative conduct
- Not engage in sexual activity with children (persons under the age of 18). Mistaken belief in the age of a child is not a defense
- Not engage in exchange of money, employment, goods or services for sex, including sexual favours or other forms of humiliating, degrading or exploitative behaviour including any exchange of assistance that is due to beneficiaries
- Not engage in sexual relationships with beneficiaries, since they are based on inherently unequal power dynamics
- Not engage in any commercially exploitative activities with children or vulnerable adults including child labour or trafficking
- Not physically assault a child or vulnerable adult
- Not emotionally or psychologically abuse a child or vulnerable adult
- Ensure the safety, health and welfare of all employees, volunteers, partners, suppliers and contractors
- Adhere to all legal and organisational health and safety requirements in force at my location of work
- Behave in a manner such as to avoid any unnecessary risk to the safety, health and welfare of myself and others, including partner organisations and communities with whom we work
- Not use IT equipment, software or e-mail and social media platforms to engage in activity that intimidates or harasses any group based on protected characteristics, or encourages extremism
- Not use view, download, create, distribute or save in any format inappropriate or abusive material including but not limited to pornography or depictions of child abuse

Read and Signed:

Date

8. References:

- a) https://www.bond.org.uk/wp-content/uploads/2022/08/bond_safeguarding_safeguarding_policy.docx
- b) <https://www.britishcouncil.in/safeguarding-policy>
- c) <https://www.anncrafttrust.org/resources/why-you-need-safeguarding-adults-policy/>

Definitions:

1. Safeguarding: Safeguarding is about embedding practices to ensure the protection of children and/or vulnerable adults wherever possible. In contrast, child and adult protection is about responding to circumstances that arise.

2. Abuse: Abuse is an act of oppression and injustice, exploitation and manipulation of power by those in a position of authority. This can be caused by those inflicting harm or those who fail to act to prevent harm. Abuse is not restricted to any socio-economic group, gender or culture. It can take a number of forms, including the following:

- Physical abuse
- Sexual abuse
- Emotional abuse
- Bullying
- Neglect
- Financial (or material) abuse

3. Definition of a child: A child is under the age of 18 (as defined in the United Nations convention on the Rights of a Child).

4. Definition of Vulnerable Adults: A vulnerable adult is a person aged 18 years or over who may be unable to take care of themselves or protect themselves from harm or from being exploited. This may include, but not be limited to a person who:

- Is elderly and frail
- Has a mental illness including dementia
- Has a physical or sensory disability
- Has a learning disability
- Has a severe physical illness
- Is a substance misuser
- Is homeless

5. Sexual exploitation – actual or attempted abuse of a position of vulnerability, power or trust, for sexual purposes, including but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another.

6. Sexual abuse – the actual or threatened physical intrusion of a sexual nature whether by force or under unequal or coercive conditions.

7. Child sexual exploitation includes sexual relations with a **child**, in any context, defined as a human being below the age of 18 years. Child sexual exploitation and abuse constitute acts of serious misconduct and are therefore grounds for disciplinary action up to and including termination, and may result in criminal proceedings

8. Sexual harassment – any conduct, comment, gesture, or contact of a sexual nature, whether on a one-time basis or in a continuous series of incidents:

- that might reasonably be expected to cause offence or humiliation to the individual; or
- that might reasonably be perceived by the individual as placing a condition of a sexual nature on employment or on any opportunity for training or promotion

9. Child abuse – child abuse includes all forms of physical and emotional ill-treatment, sexual abuse, neglect or negligent treatment, and commercial or other exploitation resulting in actual or potential harm to the child's health, survival, development or dignity in the context of a relationship of responsibility, trust or power.

10. Child labour – child labour is work that deprives children of their childhood, their potential and their dignity, and that is harmful to physical and mental development. It refers to work that is mentally, physically, socially or morally dangerous and harmful to children and interferes with their schooling by depriving them of the opportunity to attend school, obliging them to leave school prematurely or requiring them to attempt to combine school attendance with excessively long and strenuous work. Whilst child labour takes many different forms, the worst forms of child labour include:

- all forms of slavery or practices similar to slavery, such as the sale and trafficking of children, debt bondage and serfdom and forced or compulsory labour, including forced or compulsory recruitment of children for use in armed conflict;
- the use, procuring or offering of a child for prostitution, for the production of pornography or for pornographic performances;
- the use, procuring or offering of a child for illicit activities, in particular for the production and trafficking of drugs as defined in the relevant international treaties;
- work which, by its nature or the circumstances in which it is carried out, is likely to harm the health, safety or morals of children.